

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #08	CCRB Case #: 201800041	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 12/30/2017 9:45 AM	Location of Incident: Over the phone	18 Mo. SOL 6/30/2019	Precinct: 42
Date/Time CV Reported Sat, 12/30/2017 9:55 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 12/30/2017 9:55 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Allan Offley	05826	935761	042 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Allan Offley	Discourtesy: Detective Allan Offley spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On December 30, 2017, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System. On December 30, 2017, § 87(2)(b) additionally filed a duplicate of this complaint with IAB, which was subsequently forwarded to the CCRB on January 5, 2018.

On December 30, 2017, § 87(2)(b) received a phone call from Detective Allan Offley of the 42nd Precinct Detective Squad, wherein she alleged that Det. Offley used the word “fuck,” numerous times during the phone call, and specifically stated, “[The NYPD] don’t fucking lock people up for aggravated harassment,” and, “[The 42nd Precinct] is fucking tired of you” (**Allegation A; Discourtesy, unsubstantiated**).

There is no video evidence for this case.

Findings and Recommendations

Allegation A—Discourtesy: Detective Allan Offley spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that on December 30, 2017, at approximately 9:45 a.m., she received a phone call from Det. Offley, regarding a complaint she had filed with the 42nd Precinct on December 26, 2017, against § 87(2)(b) for aggravated harassment (Board Review 01). § 87(2)(b) said that she informed Det. Offley that § 87(2)(b) was sending her threatening text messages and wanted him “locked up.” § 87(2)(b) alleged that in response to her claim, Det. Offley replied, “[The NYPD] don’t fucking lock people up for aggravated harassment,” and, “[The 42nd Precinct] is fucking tired of you.” Det. Offley also allegedly told § 87(2)(b) that “there is no aggravated harassment law.” § 87(2)(b) stated that Det. Offley repeatedly “cursed” at her, as well as “disrespected” her, however, § 87(2)(b) could not provide any specific examples, other than Det. Offley used the word, “Fuck,” approximately four times during the phone conversation with her. § 87(2)(b) stated that after a few minutes, she and Det. Offley mutually ended the call. § 87(2)(b) stated that she called the 42nd Precinct Detective Squad back multiple times, and each time Det. Offley hung up on her.

In her initial complaint filed via the CCRB’s Call Processing System, § 87(2)(b) stated that Det. Offley threatened to “shoot § 87(2)(b) and her children (Board Review 02), however, when filing the duplicate complaint with IAB, § 87(2)(b) made no such allegation (Board Review 03). In her CCRB interview, § 87(2)(b) acknowledged that Det. Offley did not in fact threaten to “shoot her or her children,” and had made the allegation erroneously.

UF61 § 87(2)(b), generated on December 29, 2017, regarding § 87(2)(b)’s reported criminal complaint, states that she was sent text messages from § 87(2)(b) including, “Suck my penis,” “Believe me,” “Watch yourself,” and “You get everything you deserve” (Board Review 04). The UF61 further notes that § 87(2)(b) fears for her safety.

The DD5s for NYPD case § 87(2)(b) generated on December 30, 2017, at approximately 9:45 a.m., states that Det. Offley conducted a telephone interview with § 87(2)(b) regarding the UF61 she had filed the day before (Board Review 05). Det. Offley noted that there was no immediate threat of serious physical injury, and that the threat was sent via text message. Det. Offley cites that he explained that criteria for aggravated harassment to § 87(2)(b) that he referred her to the Bronx Resolution Center, and that § 87(2)(b) became upset and hung up the phone.

Det. Offley stated that on December 30, 2017, he was assigned a case for aggravated harassment filed by § 87(2)(b) (Board Review 06). At approximately 9:45 a.m., Det. Offley called § 87(2)(b) identified himself, and told her that he was calling in regards to her report of

aggravated harassment. Det. Offley stated that, after introducing himself, § 87(2)(b) immediately stated, “You know who I am. Everyone at the [42nd Precinct] knows who I am. So what is it you want?” Det. Offley explained to § 87(2)(b) that he did not know who she was as he had not spoken to or otherwise had contact with § 87(2)(b) prior to calling her the morning of December 30, 2017. Det. Offley repeated that he was calling in regards to the UF61 she had filed the day before alleging that she was the victim of aggravated harassment.

Det. Offley stated that § 87(2)(b) “became very loud, and started yelling,” and stated, “You guys know me. I want you guys to deal with this report.” Det. Offley replied that before he could do anything for her, he needed § 87(2)(b) to tell him directly what happened, and explain the occurrence that caused her to file the UF61. Det. Offley said that § 87(2)(b) “continued yelling,” although she did explain that a man she knew, that Det. Offley believed to be named § 87(2)(b) sent her a text message that read: “Suck my penis,” and “You’ll get what you deserve.” § 87(2)(b) did not tell Det. Offley that she was afraid, what she was fearful of regarding the aforementioned text messages, or what she thought might be carried out by § 87(2)(b) as a result of the text messages. § 87(2)(b) did not tell Det. Offley of any prior interactions she has had with § 87(2)(b) and only described § 87(2)(b) as “a friend, an acquaintance.”

Det. Offley denied that he told § 87(2)(b) that, “there is no law for aggravated harassment.” Det. Offley told § 87(2)(b) that “under aggravated harassment, and, being that it was a text message, it won’t be prosecuted in the Bronx. It’s not an arrest situation.” During his CCRB interview, Det. Offley explained his understanding of what constitutes aggravated harassment: “Usually... it could be text messages, it could also be a threat, but it has to be a threat of imminent danger and you have to be fearful for your life. And the text has to be specific. Aggravated harassment is one of those laws that had (sic) been revised numerous times in legislation, and we have kind of, like, strict policy within our department on how we handle it, especially in the Bronx. And text messages: “Suck my penis,” and, “You’ll get what you deserve,” does not meet that criteria.” When asked if he discussed examples of what would constitute aggravated harassment with § 87(2)(b) namely “I’m going to kill you,” or “I’m going to burn your house down,” Det. Offley said that he did not have that conversation as § 87(2)(b) “was yelling too much. I could hardly get a word in.”

Det. Offley referred § 87(2)(b) and her complaint to the Bronx Resolution Center. Upon being informed of this, Det. Offley stated that § 87(2)(b) “became very upset and argumentative and she started yelling even louder.” Det. Offley said that due to the volume of § 87(2)(b) he pulled the phone away from his ear. After a few seconds, Det. Offley returned the phone to his ear, and stated to § 87(2)(b) “Ma’am, I’m explaining to you what you need to do and what you have to do. I’m referring you to the Bronx Resolution Center—“ § 87(2)(b) hung up the phone on Det. Offley. Detective Offley stated that the phone call with § 87(2)(b) lasted approximately two to three minutes.

Approximately 10 minutes later, § 87(2)(b) called Det. Offley back and asked who his supervisor was. Det. Offley told § 87(2)(b) that he was not in at the moment. § 87(2)(b) asked when his supervisor would be at work, and Det. Offley stated that Lieutenant Hoban would be in later, and Det. Offley and § 87(2)(b) mutually ended the phone call.

Detective Offley denied hanging up the phone on § 87(2)(b) and denied using profanity during the phone call. Det. Offley denied that he used the word “fuck,” denied that he told § 87(2)(b) “the NYPD doesn’t fucking lock people up for aggravated harassment,” and denied that he told § 87(2)(b) that, “The 42nd Precinct is fucking tired of you.”

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation A** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED] has been party to three prior CCRB complaints. § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- Detective Offley, a 13-year-member-of-service, has five prior CCRB complaints against him, with a total of seven allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] rejected mediation § 87(2)(b) [REDACTED]
- On February 20, 2018, a FOIL request was sent to the New York City Comptroller's Office in order to determine if a Notice of Claim was filed in regards to this incident (Board Review 07). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 8

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date